

****20.01.2022****

****Sanction for Violation of GDPR****

The National Supervisory Authority completed in December 2021 an investigation into the operator Kaufland România SCS and found a violation of the provisions of Article 15 paragraph (3) of the General Data Protection Regulation, regarding the right of access.

As such, the operator was sanctioned with a fine amounting to 14,846.4 lei (equivalent to 3,000 EURO).

The investigation was initiated following a complaint made by a data subject who reported that the operator did not provide a complete copy of the video recordings for a specific time period during which they were present in the respective commercial premises.

During the investigation, it was determined that it is an obligation of the operator to communicate a video recording that contains images concerning the data subject, as a result of the exercise of the right of access by the data subject, and the communication of the images can be carried out by the operator by taking measures to obscure ("blur") those images that could infringe the rights and freedoms of other natural persons, if applicable.

Therefore, the operator is obliged to adopt a series of technical and organizational measures to allow the full exercise of the right of access of the data subject, while simultaneously respecting the rights of other natural persons.

As such, the National Supervisory Authority found that the operator did not fully communicate the requested video recordings, which constitutes a violation of Article 15 paragraph (3) of the General Data Protection Regulation.

****Legal and Communication Department****

****N.S.A.P.D.C.P.****